Calendar Line 6
Case Name: *Tolentino R. Aspiras et al. v. Roger Delos Reyes et al.*
Case No.: 23CV423644

This is a partition action in which plaintiffs and defendants each hold a 50% interest in property (29 Jason Drive, Milpitas, California) that has now been sold, and as to which the remaining proceeds amount to $1,084,437.62. Plaintiffs have filed a motion seeking a distribution of $711,148.16, rather than 50% of the remaining total, based on expenditures that they claim were made for the common benefit of the parties. The court finds that this motion is wholly without merit and denies it.

First, plaintiffs argue that they contributed $517,387.37 in mortgage payments for the property, over a period of more than 30 years (April 1993 to October 2023), as well as $23,439.32 for "renovations, repairs, and maintenance," $2,586.52 for home insurance, $27,036.92 for property taxes, and $32,666.80 for a loan payment. What they fail to disclose, anywhere in their opening brief, is that they were the exclusive occupants of the property during this period. As defendants point out in their opposition brief, "Plaintiffs' payments were made in exchange for exclusive use of the Property, not as advances on ownership." (Opposition, p. 6:5-6.) As a consequence, there is zero basis for the court to find that any of these payments were for "the common benefit." These payments were the equivalent of rent over this thirty-and-a-half-year period, and so the court finds that they were solely for the benefit of plaintiffs.

Second, plaintiffs argue that they are entitled to attorney's fees of $25,050.23 in connection with this partition action, but the court finds that these expenditures were also not for the common benefit. As defendants again point out, they were not opposed to a partition and sale of the property; instead, the parties had disagreements over the choice of broker and the distribution of proceeds between them. (Opposition, pp. 3:12-4:22; 7:22-9:5.) The court takes judicial notice of the fact that the contested filings in this case consist of: (1) plaintiffs' demurrer to defendants' answer, which the court found to be meritless on January 16, 2024; (2) plaintiffs' ex parte application to confirm the sale, which the court found to be "extremely confusing" on July 16, 2024 and then rendered moot by the parties' stipulation in August 2024; and (3) the present motion, which the court finds to be equally meritless. None of this can reasonably be deemed to have been advanced by plaintiffs or their counsel for the common benefit.

The motion is DENIED. The court orders that each side receive a 50% share of the remaining proceeds.

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Calendar Line 7
Case Name: *Karen Castro v. Quanta Manufacturing Incorporation et al.*
Case No.: 23CV426909

In this wrongful termination and discrimination case, defendant TPS Solutions, Inc. ("TPS") moves to compel arbitration against its former employee, plaintiff Karen Castro, based on an arbitration agreement that Castro purportedly e-signed in both Spanish and English. Castro disputes that she ever signed such an agreement. In addition, she argues that the agreement is unenforceable because it is procedurally and substantively unconscionable. Having reviewed the evidence submitted by the parties, the court concludes that TPS has failed to show the existence of a valid arbitration agreement and therefore denies the motion.

1. Background Facts

Castro was hired by TPS to work as a janitor from November 2021 to July 2023.[10] She says that she was born and raised in Honduras, where she received only a sixth-grade education. She cannot read English and has a limited ability to speak English. She says she has never owned a computer (or laptop or tablet) and does not know how to use a computer. (Declaration of Karen Castro, ¶¶ 2-9.)[11]

TPS contends that Castro electronically signed a Spanish-language arbitration agreement on March 2, 2023, as well as an English-language arbitration agreement on July 5, 2023—the latter while she was on pregnancy leave and before she was disallowed from returning. It appears that the time stamps on both of these signatures are very late in the evening: 10:48 p.m. on March 2 and 11:02 p.m. on July 5. According to TPS's President, Michael Avidano, signing these agreements was a part of TPS's "online onboarding" process in 2023. (Declaration of Michael Avidano, ¶¶ 4-5.) Employees were directed to enter their names and social security numbers on the "Tempworks" system, and then to create a unique username and password, after which they would be presented with a series of documents to review and sign. (*Id.* at ¶¶ 6-10.) Avidano states: "The Tempworks system shows that an employee using the Karen Castro profile[] clicked the check box on the Arbitration Agreement to place Karen Castro's signature the [sic] Spanish Language Arbitration Agreement on March 02, 2023. Only an individual using Ms. Castro's unique login and password could have checked the check box on the Arbitration Agreement." (*Id.* at ¶ 11.)

2. Legal Standard

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden-shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement's existence. If the opposing party does so, then the burden shifts back to the proponent of

[10] Castro claims that she worked until May 4, 2023, at which point she took a leave of absence for her pregnancy. When she tried to return in July 2023, she was not allowed to resume her job.
[11] Castro's declaration is in both English and Spanish, accompanied by a certification of the translator.